

COURT OF COMMON PLEAS
ADAMS COUNTY, OHIO

FILED
ADAMS COUNTY
CLERK OF COURTS

2018 OCT 22 PM 1:59

STATE OF OHIO

CASE NO. 20180065

Laura Welfley
CLERK

PLAINTIFF

VS

LAURA WELFLEY

DEFENDANT

* * * *

JUDGMENT ENTRY ON SENTENCE

On October 22, 2018, defendant's sentencing hearing was held, pursuant to Ohio Revised Code Section 2929.19. Present in Court were, Defense Attorney, Mark Wieczorek; and Prosecuting Attorney, **C. DAVID Kelley**, as was the defendant, who was afforded all rights, pursuant to Criminal Rule 32. The Court has considered the record, oral statements, any victim impact statements and presentence report prepared, as well as the principle and purposes of sentencing under Ohio Revised Code Section 2929.11(A) which sets forth that: A Court that sentences an offender for a felony shall be guided by the overriding purposes of felony sentencing. The overriding purposes of felony sentencing are to protect the public from future crime by the offender and others, and to punish the offender using the minimum sanctions that the Court determines accomplishes those purposes without imposing an unnecessary burden on the State or local government resources. To achieve those purposes, the sentencing Court shall consider the need for incapacitating the offender, deterring the offender and others from future crime, rehabilitating the offender, and making restitution to the victim of the offense, the public, or both, and has balanced the seriousness and recidivism factors of ORC 2929.12.

The Court finds that the defendant has been convicted, pursuant to a voluntary plea of guilty to Sexual Battery, in violation of ORC 2907.03(A)(7) being a felony of the 3rd degree, and subject to division (A) of 2929.14 of the Ohio Revised Code.

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Therefore, after due consideration, the Court finds that the defendant is amenable to available to Community Control Sanctions.

It is therefore ordered that the defendant be sentenced to Three (3) YEARS of Community Control, subject to the basic supervision and control of the Adult Probation Department, under any terms and conditions that they deem appropriate, including that the defendant shall be prohibited from leaving the State without permission of the Court or the Adult Probation Department. The defendant shall abide by all laws including, but not limited to, the laws related to firearms and dangerous ordinance.

The Court further imposes specific sanctions and conditions as follows:

 : INTENSIVE SUPERVISION FOR:

☒ X: COMMUNITY SERVICE OF: 240 hours ☒

☒ X: A FINE OF: 5,000.⁰⁰ ☒

 : RESTITUTION OF:

 : ELECTRONIC MONITORING FOR:

 : WORK RELEASE AS FOLLOWS:

☒ X: TREATMENT: sex offender counseling with successful completion ☒

 : REFORMER'S UNANIMOUS:

 : OBTAIN G.E.D. ☒

☒ X: COUNTY JAIL TIME AS FOLLOWS: 60 days commencing November 21, 2018 ☒

 : SUSPENSION OF OPERATOR'S LICENSE FOR:

 : THE DEFENDANT SHALL ENROLL IN, REGULARLY AND TIMELY ATTEND, AND SUCCESSFULLY COMPLETE THE 26 WEEK R.U. PROGRAM.

 : OTHER: _____

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Violation of any of this sentence shall lead to a more restrictive sanction, a longer sanction, or a stated prison term of 48 months ^(B).

After prison release, if post release control is imposed, for violation of post release control conditions, the Adult Parole Authority or Parole Board could impose a more restrictive or longer control sanction or return the defendant to prison up to a maximum of ½ of the stated prison term. If the violation is a new felony, defendant may receive a prison term of the greater of one year or the time remaining on post release control, in addition to any other prison term imposed for the new offense. The defendant is ordered to serve as part of this sentence any term of post release control imposed by the Parole Board, and any prison term for violation of that post release control.

IT IS FURTHER ORDERED, that the defendant has been found guilty of a Sexually Oriented Offense, as defined in Ohio Revised Code 2950.01. The defendant is hereby classified as a TIER III ^(B) Sex Offender/Child Victim Offender Registrant, and is required to fulfill all the requires of said classification for her lifetime ^(B) years, with in-person verification every 90 ^(B) days. The defendant, having been advised of the reporting requirements of Chapter 2950 of the Ohio Revised Code, with the defendant acknowledging said requirements on record in open Court.

Defendant is hereby ordered to report to the Adult Probation Department. Defendant is ordered to pay all costs of prosecution, and any supervision fees permitted pursuant to ORC 2929.18 (A)(4).

Pursuant to ORC 2947.23(A)(1)(a) - If the defendant fails to pay that judgment or fails to timely make payments toward that judgment under a payment schedule approved by the Court, the Court may order the defendant to perform community service in an amount of not more than forty (40) hours per month until the judgment is paid, or until the court is satisfied that the defendant is in compliance with the approved payment schedule.

(b) - If the Court orders the defendant to perform the community service, the defendant will receive credit upon the judgment at the specified hourly credit rate per hour of community service performed, and each hour of community service performed will reduce the judgment by that amount.

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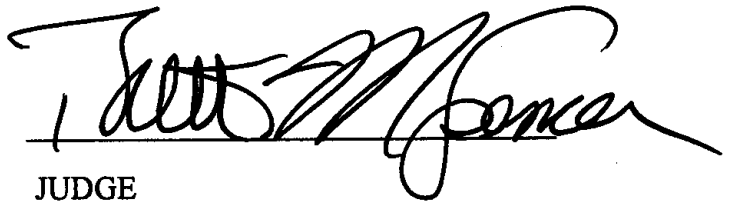
B: The Court specifically finds in the imposition of financial sanctions that the defendant has the past, present and future income ability and/or potential to satisfy all financial sanctions as imposed.

applies B: The cash bond previously posted in this matter shall be released to the surety, less the 10% processing fee.

N/A: The defendant having previously violated his/her bond, IT IS HEREBY ORDERED that the remainder of the cash bond posted herein, less the 10% processing fee, shall be forfeited and paid into the County General Fund.

THE DEFENDANT SHALL SUBMIT TO DNA TESTING, PURSUANT TO O.R.C. 2901.07. THIS IS A FINAL APPEALABLE ORDER.

DATED: *October 22, 2018*


JUDGE

C: Prosecuting Attorney, Defense Counsel, Defendant

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